

By
ARVIND
P. DATAR

ORDER IN THE COURTS

THE JUDICIARY'S IMMEDIATE CHALLENGES INCLUDE REDUCING THE HUGE BACKLOG OF CASES IN THE LOWER COURTS, FILLING UP JUDGE VACANCIES AND STREAMLINING THE WORK OF TRIBUNALS. A LARGER CONCERN IS JUDICIAL INDEPENDENCE ITSELF

As we hurtle towards the 75th year of our independence, a clear roadmap is necessary to ensure that the judicial branch of our republican Constitution—which includes courts and the tribunals—functions efficiently and independently. At present, India is ranked 163rd among 193 countries in terms of enforcement of contracts and there can be no better wake-up call. We can accomplish the goal of becoming become a five-trillion dollar economy much faster if we pay greater attention to the neglected third pillar of our democracy. In 2022, the three areas which require immediate attention are: case arrears, judicial appointments and functioning of tribunals.

THE BACKLOG

As we bid goodbye to 2021, 5,638,327 cases remain pending in the high courts (4,080,659 civil and 1,557,668 criminal cases). About 53 per cent of these cases have been pending for more than three years, including the 940,513 cases that have been dragging on for over a decade. It is interesting that out of the 22 high courts, just five account for more than half the arrears (*see box*: Great Indian case logjam).

The nature of pending cases is completely different in the different high courts. While Bombay has a huge backlog of commercial cases, Allahabad has to focus on disposing criminal cases that account for 48 per cent of its arrears; in contrast, this figure is just 11 per cent in the Madras High Court which, strangely, has the highest backlog of civil cases in the country. Each high court thus needs a tailor-made plan to reduce the backlog. The simple application of Pareto's principle will show that 80 per cent of the cases in any category will come up from 20 per cent of a sub-category. Identifying the major sources of arrears and grouping of cases will significantly help to clear the logjam. It is equally necessary to apply management principles like Kaizen and marginal gains to increase the disposal of cases with the existing resources. Similarly, the pendency at the district level is equally a matter of concern with just five states accounting for 56 per cent of the arrears of 40.4 million cases.

A closer look at the data shows that while civil cases predominate in the high courts, a staggeringly disproportionate number of criminal cases flood the district and magistrate courts. This also indicates that the poorest amongst us languish as undertrials for lack of money and for lack of adequate number of judges.

In the lower courts, the experiment of creating fast-track courts and special

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